THE CODIDACT FOUNDATION

Online Safety & Illegal Content Policy & Procedure

Operational Procedure

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Table of Contents

1. Introduction 2
2. Scope & definitions 2
3. Policy objectives 2
4. Responsibilities 2
5. Content moderation 3
6. Definitions: Illegal & harmful content 4
7. Handling prohibited content 8
8. Training 9
9. Complaints & appeals 9
10. Transparency & Review 10

Appendix I: Public Content Policy 11

Appendix II: Complaints & Appeals Procedure 13

Appendix III: Code of Conduct 14

1. Introduction

The Foundation has a duty, both legal and moral, to ensure that people using our communities can do so safely and with confidence, without fear of encountering illegal, disturbing, or harmful content, and without being subject to harassment, bullying, doxxing, or a variety of other online harms which can manifest themselves in online communities.

Arising out of our legal obligations and risk assessments under the Online Safety Act, we have identified a need for a more explicit content policy and procedure. This policy is intended to address that need by setting out how we manage online safety and how we address harmful content on our platform.

2. Scope & definitions

This policy applies to all online spaces run by the Codidact Foundation where users may communicate with one another. This may be through posts, messages, images, or other forms of communication. This **includes** online spaces managed by the Foundation on platforms owned or operated by external providers.

This policy does **not** apply to physical meetings or spaces where there is no online element.

“The Act” refers to the Online Safety Act 2023, UKPGA 2023 c. 50.

“The Foundation” refers to The Codidact Foundation CIC, UK registered company number 13032478.

3. Policy objectives

- To protect the safety and wellbeing of our users, contributors, and staff, and to balance this objective with due regard to users’ freedom of expression.
- To define illegal and harmful content and set out actions for staff handling these types of content.
- To set out a public Content Policy to be published on our platform.
- To define a complaints and appeals process for users, and set out a procedure for how this will be operated by staff.
- To set out standards for our approach to content moderation.
- To set out the provision and maintenance of training materials for volunteers and staff working in content moderation.

4. Responsibilities

- The **Director with responsibility for Online Safety Act compliance** is responsible for:
    - Ensuring annual reviews of this policy and procedure are completed
    - Ensuring training materials for volunteers and staff working in content moderation are provided and maintained
- The **Community Team** are responsible for:
    - Oversight of content moderation by volunteer moderators

    - Appointments and removals of volunteer moderators
    - Moderation of communities where no volunteer moderators have been identified
    - Ensuring moderation targets are being met
    - Ensuring that illegal content is reported to appropriate authorities where necessary
- **All staff** are responsible for:
    - Escalating potentially harmful or illegal content to the Community Team for review through local moderation channels
- **Volunteer moderators** are responsible for:
    - First-line moderation of user-submitted content
    - Initial handling of flags from community members
    - Escalating issues to the Community Team when necessary

5. Content moderation

The aims of our content moderation functions are to:

- Protect the safety and wellbeing of our users
- Promptly remove, prevent access to, and appropriately report illegal content
- Promptly remove other harmful content and restrict access where appropriate
- Enforce community rules and uphold community norms

5.1. Priorities & targets

When moderating content, we prioritise content as follows.

1. **High-risk illegal content**
   Risk as defined in our Online Safety Act Risk Assessments. No content types currently fall into this category.
   Action: Remove, restrict access, report to appropriate authorities if necessary
   By: Community Team, using the "delete for legal reasons" function. If volunteer moderators have already removed the content, this must still be completed.
   Timeframe: within 6 hours of posting
2. **Moderate-risk illegal content**
   Action: Remove, restrict access, report to appropriate authorities if necessary
   By: Community Team, using the "delete for legal reasons" function. If volunteer moderators have already removed the content, this must still be completed.
   Timeframe: within 12 hours of posting
3. **Low-risk illegal content**
   Action: Remove, restrict access, report to appropriate authorities if necessary
   By: Community Team, using the "delete for legal reasons" function. If volunteer moderators have already removed the content, this must still be completed.
   Timeframe: within 24 hours of posting
4. **Other non-priority illegal content**
   As defined in our Online Safety Act Risk Assessments.
   Action: Remove, restrict access if appropriate
   By: Community Team, using the "delete for legal reasons" function if access restriction is

necessary. If volunteer moderators have already removed the content, this must still be completed.

Timeframe: within 48 hours of posting

5. **Content otherwise breaching Code of Conduct or community rules**
   Action: any appropriate moderation action
   By: community moderators or Community Team
   Timeframe: allow 7 days for community moderators to handle, thereafter Community Team to handle.

Proportionality

These timeframes are set with regard to the size of the service in terms of numbers of users and posting frequency, and the number of people acting as volunteer moderators and in the Community Team.

6. Definitions: Illegal & harmful content

6.1. Priority illegal content

There are 17 types of priority illegal content, as defined by Ofcom.

Terrorism	
Terrorism is considered a violent action or threat of action, designed to influence a government or intimidate the public and advance a cause. Online terrorism content is any content made available to others online, which can encourage or promote terrorism.	
Child Sexual Exploitation and Abuse	
A	**Grooming**
	Grooming is the process of building a relationship or emotional connection with a child or young person so the perpetrator can manipulate, exploit, and abuse them.
B	**Image-based Child Sexual Abuse Material (CSAM)**
	Online CSAM includes material depicting sexual activity, or indecent or prohibited imagery of children and can take the form of photographic images and videos, as well as non-photographic material, such as drawings and animations. Children themselves may generate content that can be considered CSAM, which can cause them harm. UK law enforcement refers to this as self-generated indecent imagery (SGII).
C	**CSAM URLs**
	This is distinct from child sexual abuse material itself in that the content which is shared *links to* CSAM rather than containing CSAM itself.
Hate	
Hate offences can be experienced by many people, in particular minorities and other protected groups. The offences can be targeted at one or more individuals, or wider communities. Online hate content may include threatening or abusive words, behaviours, images, and other media. The Police and the Crown Prosecution Service (CPS) recognise hate crime based on race, religion, disability, sexual orientation, and transgender identity.	

Harassment, stalking, threats and abuse
The offences of harassment, stalking, threats and abuse relate to unwanted behaviours that can cause alarm and distress to other individuals or put them in fear of violence. A case can involve several types of behaviour, which may include violent threats, cyberstalking, or conduct intended to put a person in fear of violence or cause serious alarm or distress.
Controlling or coercive behaviour
Controlling or coercive behaviour occurs where the victim-survivor and the perpetrator are personally connected, the perpetrator repeatedly or continuously engages in behaviour that is controlling or coercive, and this behaviour has a serious effect on the victim-survivor, putting them in fear of violence or causing serious alarm or distress which has a substantial adverse effect on their usual day-to-day activities. Coercive behaviour can be an act (or a pattern of acts) of assault, threats, humiliation and intimidation or other abuse that is used to harm, punish, or frighten those in intimate or family contexts. Controlling behaviour includes a range of acts designed to make a person subordinate and/or dependent by isolating them from sources of support, exploiting their resources and capacities for personal gain, depriving them of the means needed for independence, resistance and escape, and regulating their everyday behaviour.
Intimate image abuse
Most commonly, an 'intimate image' is a photograph or video where the person or people are depicted engaging or participating or are present during a sexual act and/or where their genitals, buttocks or breasts are exposed or covered only with underwear. Intimate image abuse occurs when these intimate images are shared or distributed without the consent of the person pictured; or when someone threatens to share or distribute these images or videos without consent.
Extreme pornography
'Extreme pornography' is an umbrella term used in UK law to cover several categories of images which are illegal to possess. Although the legislation varies slightly across legal systems in the UK, extreme pornography broadly covers images which are produced principally for sexual arousal, and which depict extreme or obscene behaviours. Possession involves having 'custody or control' over the content. Extreme pornographic content includes realistic and explicit depictions of necrophilia, bestiality, acts threatening a person's life, acts that could result in serious injury to specific parts of the body, rape and assault by penetration.
Sexual exploitation of adults
Sexual exploitation is the inducement of a commercial sex act generally by means of force, fraud or coercion. Online this frequently falls into two distinct categories: (a) individuals who are coerced or forced into sex work, and (b) consenting adult sex workers who are controlled or exploited by another person.
Human trafficking
Human trafficking encompasses a wide range of harmful activities. It can involve modern slavery, and victims and survivors include adults and children. It is estimated that there were 122,000 people living in modern slavery in the UK in 2021. Notable forms of human trafficking where harm can manifest online include sexual exploitation and abuse, forced labour, and criminal exploitation such as county lines exportation of illegal drugs.

Unlawful immigration
‘Illegal entry’ means an individual entering the United Kingdom in breach of a deportation order, entering without permission to remain, or without entry clearance when the individual needs it. A person commits the offence of ‘unlawful immigration’ if they do an act which facilitates a breach or attempted breach of immigration law by an individual who is not a national of the United Kingdom – and where they know or have reasonable cause for believing this to be the case. It is usually encouraged by organised crime. Online aspects of unlawful immigration could include the sale of counterfeit travel documents such as passports, visas and identification papers, as well as the sale of crossings.
Fraud and financial offences
Content in this category overlaps strongly with offences related to Proceeds of Crime. Fraud may occur online as fraud by impersonation or false representation; purchase, investment, romance, or employment scams, or the recruitment of money mules or launderers.
Proceeds of crime
‘Proceeds of crime’ is the term used for money or assets gained by criminals during their criminal activity and money laundering. Examples of activities which involve the proceeds of crime online include people being recruited as money mules to transfer illegally obtained money between bank accounts, discussion between criminals to arrange money laundering, and stolen personal information (via other criminal activity) offered for sale which can be used to commit or facilitate other types of fraud.
Drugs and psychoactive substances
The supply of drugs and psychoactive substances is facilitated online by enabling suppliers to market their products and connect with potential buyers. Many of the functionalities of online services that enable suppliers of legal products to reach, engage and deal directly or indirectly with customers can also be used by those selling illicit substances.
Firearms, knives and other weapons
The firearms, knives and other weapons offences cover various matters relating to the online sale of a range of firearms, knives and other weapons. In the UK, firearms and certain offensive weapons are classified as restricted or prohibited. Prohibited firearms and offensive weapons are subject to the strictest limitations on sale.
Encouraging or assisting suicide
This offence takes place when an individual intentionally encourages or assists a person to (attempt to) end their life. Content related to suicide is extremely sensitive; while there may be users who post this content to cause harm to others, some users may post this content to find supportive communities, to express their own experiences as part of a healing process or to attempt to help others. Users posting and engaging with this type of content can include those in vulnerable circumstances who are themselves dealing with thoughts of suicide or self-harm, as well as those who have recovered or are recovering from mental health challenges.
Foreign interference
The new Foreign Interference Offence (FIO) has been designed to tackle malign activity carried out for, or on behalf of, or intended to benefit, a foreign power. Prohibited conduct captured by this offence will include where there is a misrepresentation of a person’s identity or purpose, or in the presentation of the information, for example, through state-backed disinformation campaigns.

Animal cruelty
Most acts of cruelty occur offline. The publication online of content relating to or depicting these offline acts does not in itself cause the animal unnecessary suffering (or further suffering) and therefore cannot constitute an offence under the Animal Welfare Act. However, the existence of online activities that encourage, assist or commit acts of animal cruelty may result in content being made available which may distress a user, or cause them to engage in harmful or illegal behaviours and activities themselves.

6.2. Other non-priority illegal content

There are also a number of other types of content which, while not "priority" offences under the Act, also constitute illegal content which should be removed.

Epilepsy trolling
Some individuals with epilepsy may have a physical reaction to online content; they may feel disorientated, uncomfortable or unwell after seeing certain images or patterns. The offence is sharing an image with the intention to cause harm to an individual with epilepsy.
Cyberflashing
The cyberflashing offence refers to the sending of a photograph or film of genitals, to cause alarm, distress or humiliation, or to obtain sexual gratification. In addition, cyberflashing can form part of a pattern of harmful behaviour that includes other harms such as cyberstalking, harassment, and/or controlling or coercive behaviour.
Encouraging or assisting serious self-harm
This offence takes place when an individual intentionally encourages or assists a person to carry out serious self-harm. Posting of content that amounts to the offence of encouraging or assisting serious self-harm is often found in proximity to posting of other types of content related to self-harm that do not amount to the offence.
False communications
A person commits the false communications offence if they send a message, with no reasonable excuse to send it, that they know to be false and intend for that message to cause harm.
Obscene content showing torture of humans and animals (the s.127(1) offence)
This is a non-priority offence covering depictions of cruelty which are so serious as to be obscene, but which may not amount to another priority offence (such as terrorism or animal cruelty offences). This offence is important because for pre-recorded content some illegal animal cruelty and human torture content may not necessarily amount to a priority offence.
Threatening communications
A person commits the threatening communications offence if they send a message that conveys a threat of death or serious harm and, at the time of sending it, the sender intended the individual encountering the message to fear that the threat would be carried out, or was reckless as to whether the individual encountering the message would fear that the threat would be carried out.

6.3. Service-specific illegal content risks

Our risk assessment has identified additional risks for other types of illegal content.

De-anonymisation ("doxxing")
De-anonymisation, known online as "doxxing", is the posting of a user's personal information by another user without permission. This may include a user's name, home or work address, email address, telephone number, information about protected characteristics such as sexual orientation, or other personally-identifiable information. This is often done with the intent to humiliate the victim, but in more serious cases may be done with the intention to expose the victim to physical harm.
Copyright infringement
Copyright infringement may occur online when content is researched or used from elsewhere as part of user-generated content, in violation of the copyright on that content and not otherwise permitted by fair dealing exceptions. It is also likely that the use of generative AI models is a strong risk factor for copyright infringements, as these models often fail to appropriately reference their sources for users to consider whether a copyright exists.

7. Handling prohibited content

All of the types of content listed above amount to illegal content and must be removed and dealt with appropriately. The Act also imposes additional reporting duties on service operators for some types of content, which must also be carried out by the person handling the content.

When an item of content **on a Foundation-owned service** (i.e. Codidact communities) is identified as potentially illegal content, either directly by a member of Foundation staff or via community flags or escalation from volunteer moderators, the following steps must be followed by a member of the Community Team:

1. Review Ofcom's Illegal Content Judgements Guidance (ICJG) for the relevant content type to make a firm judgement of whether the content is illegal. The latest version may be found on the Online Safety regulatory documents page.
    a. If the content is not judged to be illegal, take no further action under this procedure. Locally defined moderation action *may* still take place if appropriate.
    b. If the content **is** judged to be illegal, proceed to step 2.
    c. If there are any **doubts** about the judgement, temporarily delete it using the normal delete function, and ask for a second review from another member of the Community Team. If doubts remain, the content should be assumed to be illegal and handled accordingly.
2. Using the ICJG, identify if any additional reporting duties apply. This is the case for at least the following types of content, although this list is not authoritative and the ICJG must be checked:

    - CSAM
    - CSAM URLs
    - CSEA and grooming

    If additional reporting duties apply, temporarily delete the content using the normal delete function while reporting is carried out. Once reporting has been completed, proceed to step 3.

3. Remove the content in question by using the “delete for legal reasons” function available to staff.
    a. This alone is sufficient to remove text-only content.
    b. If the content in question includes images uploaded via the service’s image upload feature (and thus hosted by the Foundation), alert a system administrator so this can also be removed.

When an item of content is identified as potentially illegal content on a service **used or managed by the Foundation** but **owned and operated by a third party** (such as Discord, Jira etc), the following steps must be followed by a member of the Community Team (or escalated by them to a member of staff with appropriate permissions):

1. Report the content using on-platform reporting functions to the operator of the platform so that they may handle it in line with the Act.
2. Delete or otherwise remove from public view the item of content using on-platform tools.

8. Training

The Act places a responsibility on service providers to provide training to those responsible for moderating content. In the Foundation’s case, this means volunteer moderators and the Community Team.

Training material will be made available directly through the service’s Safety Centre to all users with moderator or staff status. The training will cover:

- A brief overview of the Online Safety Act
- Sections covering each of the types of illegal content, including priority, non-priority, and service-specific risks. This will include a clear definition, a summary of the information from Ofcom’s Register of Risks, and a summary of the relevant Illegal Content Judgements Guidance.
- A section covering reporting:
    - For volunteer moderators this will extend to escalating the report to the Community Team via the Safety Centre.
    - For the Community Team this will cover handling reports in line with Appendix II and additional reporting requirements as described in section 7.

The training will be reviewed at least annually and updated with any changes to the Act or relevant guidance. The service will keep a record of the completion of this training.

9. Complaints & appeals

“Complaints” in this context means reports from users who have found content they believe to be illegal, or who wish to complain about the Foundation’s compliance or procedures (for instance, that the Foundation is not complying with its duties, or that it is not following its procedures correctly). “Appeals” means reports from users whose content has been deleted following this procedure who wish to challenge the classification and deletion.

Complaints and appeals will be accepted through the service's Safety Centre via the same reporting tool. This tool will provide notification to users with staff status that there has been a report, which will remain visible until the report is handled.

Complaints and appeals will be handled by a member of the Community Team in accordance with the procedure in Appendix II.

10. Transparency & Review

10.1. Transparency reporting

We will publish, as part of our annual CIC Report, transparency reports. These will cover:

- Statistics:
    - Local moderation action where content was deleted
    - Moderation action by staff where content was removed under this policy
- A summary of any updates made to our Online Safety Act risk assessment or to this policy since the previous report.

10.2. Policy review

This policy will be reviewed:

- At least annually
- After any major related legislative changes
- After any significant related incidents
- After any significant changes to our risk assessment

Appendix I: Public Content Policy

Codidact is a non-profit, community-governed network of Q&A communities. This policy defines the standards for acceptable content across the Codidact platform and outlines how we identify, assess, and mitigate risks in line with the UK Online Safety Act.

This policy applies to:

- All users and visitors
- All posts, comments, messages, and uploaded materials
- All communities, regardless of topic

Communities may adopt stricter rules but may not weaken or contradict this policy.

Core Principles

Safety First

We will take reasonable and proportionate steps to reduce the risk of harm to our users, including the risks presented by encountering illegal content on our platform.

Community Self-Governance

Individual communities may set community- and topic-specific rules by general consensus, but may not adopt rules which contradict or weaken those set out in this policy.

Transparency

Moderation actions will be logged and auditable by peer moderators and staff members. Escalation pathways and appeals processes will be clear, accessible, and auditable.

Freedom of Expression

We support respectful, good-faith interaction and knowledge sharing while removing illegal or harmful content.

Prohibited Content

Illegal Content

Content which constitutes a criminal offence in the UK is **prohibited** on the platform. This includes but is by no means limited to the following:

- Terrorist content
- Child sexual abuse material, or links to it
- Harassment or hate speech
- Threatening or inciting violence
- Encouraging self-harm or suicide attempts
- Sharing anyone else's personal information without consent
- Encouraging or assisting a criminal offence

Adult Content

While our platform is not designed or marketed specifically for children, we acknowledge that children are also capable of engaging in respectful, good-faith knowledge sharing. We do not ask

for or record users' ages, and as such we acknowledge the possibility that a small number of children may use the platform.

Adult content, including without limitation pornographic material, whether real, AI-generated, or written or depicted any other way, is **prohibited** on the platform.

Restricted Content

Sensitive Topics

Whilst content fitting the definitions above is prohibited, we acknowledge that legitimate questions may arise *about* some of these topic areas without necessarily constituting content of that type. Other topic areas which are not themselves prohibited may also be sensitive topics of discussion. These topics may include, for example, questions about mental health, self-harm, trauma, violence, hate crime, or criminal acts. This list is not exhaustive and Foundation staff and local moderators may take proportional moderation action on any sensitive topic. Posts on these topics must be:

- Non-graphic in both text and any related media
- Educational, academic, analytical, or supportive
- Not encouraging harmful behaviour

Moderation

Our communities are moderated through a combination of community moderation actions, elected or appointed volunteer local moderators, staff with moderation powers, and automated moderation systems.

Appointed, elected, or staff moderators may take any action they think proportionate in moderating content to uphold community rules, our Terms of Service and Code of Conduct, and this Content Policy. This may include asking an author to change their post or editing content directly, removing content, or issuing warnings or suspensions. Foundation staff may in serious cases—including deliberately posting illegal content—permanently ban users.

Appeals

Users may appeal moderation actions by posting in the relevant community's Meta category. Where possible, this will be reviewed by a different moderator or a member of Foundation staff. Local moderators are empowered to resolve disputes and appeals; Foundation staff will not overrule a local moderator decision unless there is a policy or legal reason to do so, or when local moderators are not available.

Illegal content handling & appeals

When illegal content is identified, local moderators will escalate it to Foundation staff. Staff will remove the content, securely preserve evidence, and notify relevant authorities if necessary.

Where content is removed by Foundation staff because it is suspected of being illegal content, its author will be notified and a report automatically filed in our Safety Centre.

To appeal an illegal content removal, users should not post in the community's Meta category, but should instead file an appeal via the Safety Centre.

Appendix II: Complaints & Appeals Procedure

Complaints and appeals, as outlined in the Online Safety Act, may be filed via the on-platform Safety Centre. A member of Foundation staff will review the submission in line with the following procedure.

This procedure does **not** apply to appeals against local moderation actions, or to appeals against staff moderation actions where these actions were not taken due to requirements of the Online Safety Act. These appeals are not formally defined, and should be posted in the Meta category of the relevant community.

1. Pending Review

This stage is the starting point immediately after a complaint or appeal is filed. The submitter is sent an automatic email acknowledgement, and staff are notified on-platform that a submission is awaiting attention.

2. Assigned

The first available member of staff will assign the submission to themselves for review. This member of staff will then review the submission, any related content, and any other evidence they feel is relevant to fully consider the submission, and will make a decision as to the outcome. This may be any of the following states.

3. Reviewed

3a. Upheld

The complaint or appeal is upheld; there is evidence to support the submission.

- In the case of a content report, the related content will be removed by staff for legal reasons, in line with this policy.
- In the case of a procedural complaint, appropriate remedial steps will be taken.
- In the case of a content appeal, the original decision or classification will be reversed, and the content restored if possible.

3b. Upheld – Classification Disputed

This outcome is applicable only to reports of illegal content where the submitter has suggested a classification. The report is upheld but the reviewer may select a different category that better fits the content.

3c. Disputed

The submission is disputed; there is no evidence or insufficient evidence to support the submission. No further action will be taken.

4. Response

If the submitter chooses to receive further communication about their report, the outcome will be emailed to them. In other cases, the initial acknowledgement contains a link which the submitter may use at any later time to see further updates on their report.

In either case, the submitter will have the opportunity to respond to the decision if they wish to.

5. Closed

The assignee will consider any response the submitter makes and *may* change the outcome if appropriate. If the outcome is changed, this will be communicated in the same way as an initial outcome. If the outcome is not changed, the assignee is not obligated to respond further and may close the submission.

Submissions which have an outcome and have not received a response from the submitter will be automatically closed after one month from the outcome date.

Appendix III: Code of Conduct

Our Code of Conduct works in conjunction with our Terms of Service to set expectations for member conduct on our platforms.

The authoritative version of both our Terms of Service and Code of Conduct are held in our documentation GitHub repository at https://github.com/codidact/docs:

- Code of Conduct
- Terms of Service

When these are updated, changes will be copied back to the on-platform versions

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